

TERMS & CONDITIONS

GS SURGICAL

These Terms & Conditions apply to all quotations, purchase orders, invoices, and supplies made by GS Surgical.

1. GENERAL

- 1.1 All sales are subject to these Terms & Conditions.
- 1.2 Placing a Purchase Order (PO) or accepting delivery constitutes acceptance of these Terms & Conditions.
- 1.3 GS Surgical reserves the right to modify these Terms & Conditions without prior notice.

2. PRICING

- 2.1 All prices are quoted in Indian Rupees (INR).
- 2.2 GST and other applicable taxes will be charged extra unless specifically mentioned otherwise.
- 2.3 Prices are subject to change without prior notice until the order is confirmed.

3. QUOTATIONS

- 3.1 Quotations are valid only for the period mentioned in the quotation.
- 3.2 If no validity is mentioned, the quotation shall remain valid for 15 days from the date of issue.
- 3.3 Prices may change after the validity period.

4. PURCHASE ORDERS

- 4.1 Orders will be processed only after receipt of a valid Purchase Order or written confirmation.
- 4.2 Once confirmed, cancellation or modification of an order may not be accepted.

5. PAYMENT TERMS

- 5.1 Payment terms shall be as agreed between both parties.
- 5.2 Advance payment may be required for selected products.
- 5.3 Delay in payment may result in delayed dispatch or cancellation of the order.
- 5.4 Interest may be charged on overdue payments where applicable.

6. DELIVERY

- 6.1 Delivery schedules are approximate and subject to product availability and logistics.
- 6.2 GS Surgical shall not be responsible for delays caused by transporters, natural disasters, government restrictions, strikes, or other events beyond its control.
- 6.3 Delivery charges, if applicable, shall be borne by the buyer unless agreed otherwise.

7. INSPECTION

- 7.1 The buyer must inspect the goods immediately upon delivery.
- 7.2 Any shortage, damage, or incorrect supply must be reported within 24 hours of delivery.
- 7.3 Claims made after this period may not be accepted.

8. RETURN & REPLACEMENT

- 8.1 Goods once sold shall not be taken back unless approved by GS Surgical.
- 8.2 Replacement will be provided only for manufacturing defects or incorrect supply, subject to verification.
- 8.3 Products damaged due to misuse, improper handling, or unauthorized repair shall not be eligible for replacement.

9. WARRANTY

- 9.1 Warranty, if applicable, shall be as provided by the original manufacturer.
- 9.2 GS Surgical acts as a supplier/trader and shall not be responsible for manufacturer warranty decisions.
- 9.3 Warranty does not cover accidental damage, misuse, or unauthorized modifications.

10. RISK & OWNERSHIP

- 10.1 Risk of loss or damage passes to the buyer upon delivery.
- 10.2 Ownership of goods remains with GS Surgical until full payment is received.

11. TAXES

- 11.1 GST shall be charged as per applicable government regulations.
- 11.2 The buyer shall provide correct GST details wherever applicable.

12. FORCE MAJEURE

GS Surgical shall not be liable for delays or failure in performance due to events beyond reasonable control, including natural calamities, pandemics, transport disruptions, strikes, war, or government actions.

13. LIMITATION OF LIABILITY

GS Surgical shall not be liable for any indirect, incidental, consequential, or special damages arising from the use or inability to use the supplied products.

14. GOVERNING LAW & JURISDICTION

All disputes shall be governed by the laws of India. Courts having jurisdiction in Delhi shall have exclusive jurisdiction over all disputes.

15. ACCEPTANCE

Acceptance of the quotation, invoice, or delivery of goods shall be deemed as acceptance of these Terms & Conditions.

Thank you for choosing GS Surgical.
Quality Equipment, Better Healthcare.

